JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION
Siemens or Johnson Controls Building Automation and Temperature Controls
VA West Haven New Chilled Water Plant
Solicitation No. W912WJ26RA008

1. Contracting Activity:

U.S. Army Corps of Engineers (USACE), New England District (NAE)
696 Virginia Road
Concord, MA 01742

2. Description of Action:

Approval is requested for use of brand name items in an upcoming acquisition.

This Justification and Approval (J&A) supports the use of brand name components in an upcoming firm fixed price construction project funded with procurement appropriations. The Government will not purchase the components directly but rather will require that offerors include the provision and installation of these brand name components as part of proposals submitted in response to a competitive solicitation that will lead to the award of a new construction contract. This J&A covers only the portion of the acquisition which is brand-name or particular to the noted manufacturers.

3. Description of Supplies/Services:

This project is a Department of Veterans Affairs (VA) requirement to construct a new Chilled Water Plant and provide site utility improvements for the VA Connecticut Healthcare System (VACHS) in West Haven, Connecticut. The requirement is to provide a Building Automation System and Temperature Controls in the new Chilled Water Plant that is compatible with and fully integrated to the existing building automation platforms already established across the VACHS campus.

The cost to furnish and install the requested brand-name requirements is estimated at [redacted].

The solicitation for the construction contract for this project will be an unrestricted Best Value Trade-off solicitation, competed under Revolutionary FAR Overhaul (RFO) Part 15. The solicitation is expected to be awarded in Fiscal Year (FY) 2027 with construction completed in FY 2031, with a total estimated construction cost of [redacted].

4. Authority Cited:

10 United States Code (U.S.C.) 3204(a)(1) as implemented by RFO 6.103-1 - Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. In accordance with this authority, the solicitation will specify that all offerors be required to procure only the cited brand name products.

5. Reason for Authority Cited:

a. Background:

VACHS's primary mission is to provide advanced and patient-centric healthcare to veterans. Part of providing quality healthcare to veterans requires state-of-the-art infrastructure and systems to support that care. Replacement of the new Chilled Water Plant will foster significant improvements to the facility's central utility plants, making operation safer and more efficient.

The VACHS campus building automation environment is standardized on two original equipment manufacturer platforms including Johnson Controls, Inc. (JCI), which is the predominant platform deployed across the campus, and Siemens, which is deployed in specific primary utility plant facilities including the existing Combined Heat & Power (CH&P) Plant. To ensure the new Chilled Water Plant integrates with, and is supportable within, this existing environment, VACHS requires that the new Building Automation System be provided as either a Siemens or a Johnson Controls system. Either of these will satisfy the Government's requirement; no other manufacturer's building automation system will. Both platforms are already installed on campus, are maintained by VACHS facilities staff, and are supported under existing VA service contracts.

To improve the capability, reliability, and efficiency of utility operations for the campus, the facility is integrating the new Chilled Water Plant into this established environment rather than introducing a new, non-standard control platform. The new Building Automation System will be connected to the campus's existing building automation infrastructure after completion. A building automation system is a network of sensors and control devices that provides the required infrastructure to control and monitor MEPT (mechanical, electrical, plumbing, and technology) systems throughout the plants.

VACHS is also planning construction of a new boiler plant and that design is expected to require that the new boiler plant controls also be fully integrated with one of these current building automation and control systems already in place on the campus.

b. Justification

For the system to work at an acceptable level of performance, fast, reliable communication among devices and annunciation of alarms must happen in seconds. When new MEPT systems are installed and spaces are created within the plants, the building automation system must be expanded and integrated to ensure proper communication with the existing plant user interfaces and the campus's existing building automation environment. This procurement will require the installation of various equipment, including but not limited to the following: sensors, controllers, actuators, communication protocols, and user interfaces. Part numbers are not included as they have yet to be determined and they may change based on delegated design submittals.

This Building Automation System will control the primary utility plant serving the Medical Center and will provide cooling to the patient care buildings on campus. It is critical for the safety and comfort of patients and staff that the utility plant control system integrate cleanly

with, and be supportable within, the building automation platforms VACHS already operates, so that operators can properly and quickly monitor and adjust the system as required.

Because the VACHS campus is already standardized on two original equipment manufacturer (OEM) building automation platforms, Siemens and Johnson Controls, providing the new plant with either of these two systems maintains the campus within its established two-platform environment. Operations and maintenance personnel are already trained on these platforms, standard operating procedures already exist for them, existing spare-parts inventories already support them, and VACHS can include the new chilled water plant under its existing building automation service contracts. Introducing a building automation system from any other manufacturer would add a third platform to the campus, requiring additional operator training, additional standard operating procedures, an additional service contract, additional spare parts, and additional integration engineering, increasing lifecycle operations and maintenance cost and operational risk without any offsetting benefit to the Government. Adding a third control system could also introduce operability risk within the utility plants, impacting efficient and timely operations of the plants. This can cause potential impact to cooling, heating, ventilation and overall temperature control to patient care areas, including critical care areas such as surgery, causing risk to patients, staff, and equipment.

For the reasons stated above, RFO FAR 6.103-1 is the appropriate authority for this procurement because only a Siemens or a Johnson Controls building automation system will meet the Government's requirement, and no other type of supplies or services will satisfy that requirement.

c. Alternatives:

If this J&A is not approved, the construction contract could provide a building automation system from a manufacturer other than Siemens or Johnson Controls that is not compatible with the platforms already deployed across the VACHS campus.

Requiring a single sole source (for example, Siemens only) was considered and rejected. Because the VACHS campus installed base is predominantly Johnson Controls, with Siemens deployed in specific primary utility plant facilities, a single source requirement would exclude one of the two platforms VACHS already operates and maintains, unnecessarily narrowing the sources that can satisfy the Government's integration and supportability requirement. Permitting either Siemens or Johnson Controls reflects the campus's actual installed base and existing service coverage and is less restrictive of competition than a single source requirement, while still ensuring that the new plant integrates with, and is supportable within, the existing environment.

Operating the new system as an isolated, building-level building automation system was also considered. An isolated system would require VACHS personnel to monitor and adjust an additional, standalone user interface outside the campus's existing environment. The purpose of integrating the new plant into the campus environment is to monitor and control all MEPT systems within that established environment; an isolated stand-alone system would not comply. It would also require another service contract in addition to the Medical Center's existing building automation service coverage.

Alternatively, the Medical Center could partially integrate a non-standard (third-OEM) system into the existing environment using the BACnet protocol. This would allow some monitoring and adjustment, but not full, native control of the new Chilled Water Plant within the existing environment. Complete control would still require a separate workstation, and a separate maintenance contract would still be required.

d. Impact:

If the J&A is not approved, the building automation system for the new Chilled Water Plant may be provided by a manufacturer other than the two sources already established on campus, requiring the installation of a standalone, third-OEM system and standalone user interfaces where the system is monitored and controlled. This standalone system would complicate the campus's ability to monitor and quickly control MEPT systems, as well as its ability to service these systems, thus risking the safety and comfort of patients and staff at the VACHS campus. The standalone system would also require an additional service contract for maintenance, along with additional spare-parts inventory and staff training beyond the two platforms VACHS already supports.

6. Efforts to Obtain Competition:
    a. Effective Competition: For the reasons discussed above, brand-name components are required and will be specified in an otherwise competitive solicitation for a construction project. The brand-name components to be required include a building automation system manufactured by either Siemens or Johnson Controls. Part numbers are not included as they have yet to be determined and they may change based on delegated design submittals.

        A Notice of Intent (NOI) to sole source the brand name component that offerors will be required to procure was posted on July 1, 2026 to determine potential sources for the system. The NOI was published for fifteen days on SAM.gov and received one response from Siemens confirming they have controls solutions that can support and integrate the campus utility plants.

    b. Subcontracting Competition: Subcontracting opportunities for this system will be limited since the Prime Contractor is expected to order these products directly from the selected manufacturer (Siemens or Johnson Controls) and coordinate delivery. However, it is expected that there will be other areas of work that will allow ample competitive subcontracting opportunities.

7. Actions to Increase Competition:

Based on the information provided in the above paragraphs, increasing competition for this action is not feasible. Permitting both Siemens or Johnson Controls is itself less restrictive than a single-source requirement. The brand name requirement for this system does not preclude a wide range of contractors from submitting a proposal on this procurement of an otherwise competitive construction project.

8. Market Research:

USACE personnel consulted with the VA on June 26, 2026 to identify any comparable products that could meet the VA's specific requirements. Consultations were with VA Construction and Facilities Management (CFM) and the VA Medical Center Facilities Management Service. This market research established that the VACHS campus building automation environment is standardized on two OEM platforms — Johnson Controls, which is the predominant platform deployed across the campus, and Siemens, which is deployed in specific primary utility plant facilities such as the CH&P Plant, and that only a building automation system from one of these two OEMs can integrate with, and be supported within, the existing environment. On this basis, and consistent with VACHS's building automation standardization, CFM recommended that USACE require that the new Chilled Water Plant building automation system be provided as either a Siemens or a Johnson Controls system. Based on these conversations, it was determined that no other control systems could fully integrate and meet these requirements within the campus' established building automation environment.

Finally, to ensure maximum transparency and solicit prospective industry capabilities, a Notice of Intent (NOI) to Sole Source was formally published via the System for Award Management (SAM.gov). The results of this posting are detailed in Section 9 (Interested Sources) of this document.

9. Interested Sources:

A NOI to determine potential sources for this system was published on July 1, 2026, and closed July 17, 2026. One response was received from Siemens confirming they have controls solutions that can support and integrate the campus utility plants. Once approved, this J&A will be published with the solicitation in accordance with RFO 6.301(b)(2).

10. Other Facts:

The Siemens and Johnson Controls building automation product lines specified for this project are required to meet Buy American requirements, and the solicitation will require that the installed system comply.

11. Technical Certification

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: SIMONETTA.JOSEPH.DAVID.1249422424 Digitally signed by SIMONETTA.JOSEPH.DAVID.1249422424 Date: 2026.07.27 11:52:52 -04'00' Date: 7/27/2026

Typed Name: Joseph D. Simonetta Title: Technical Lead

12. Requirements Certification

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: FLANAGAN.JENNIFER.WAI.1228539747 Digitally signed by FLANAGAN.JENNIFER.WAI.1228539747 Date: 2026.07.30 12:05:57 -04'00' Date: 7/30/2026

Typed Name: Jennifer W. Flanagan Title: Project Manager

13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. Reasonableness will be determined using price analysis techniques. Per RFO Part 15, a Certificate of Current Cost and Pricing Data may be obtained but may be waived depending on the level of competition for the contract.

Signature: Erin E. Bradley Digitally signed by BRADLEY.ERIN.ELIZABETH.1386908440 Date: 2026.07.30 12:38:09 -04'00' Date: _____

Typed Name: Erin E. Bradley Title: Contracting Officer

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: Erin E. Bradley Digitally signed by BRADLEY.ERIN.ELIZABETH.1386908440 Date: 2026.07.30 12:38:25 -04'00' Date: _____

Typed Name: Erin E. Bradley Title: Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of the Siemens or Johnson Control System being procured with total dollar value of approximately [redacted] on an other than full and open competition basis pursuant to the authority of 10 United States Code (U.S.C.) 3204(a)(1) and RFO 6.103-1, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for this acquisition.

Signature: Erin E. Bradley Digitally signed by BRADLEY.ERIN.ELIZABETH.1386908440 Date: 2026.07.30 12:38:38 -04'00'
Contracting Officer